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# Non-Disclosure Agreement

This Non-Disclosure Agreement ("Agreement") is entered into as of \_\_\_\_\_ between:

**Party A:** SAOS Studio, located at \_\_\_\_\_ ("Discloser")

**Party B:** \_\_\_\_\_, located at \_\_\_\_\_  
("Recipient")

## 1. Purpose

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The parties wish to explore a potential business relationship involving web design and development services. In connection with this exploration, each party may disclose certain confidential and proprietary information.

## 2. Definition of Confidential Information

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"Confidential Information" means any and all non-public, proprietary, or confidential information disclosed by either party, whether orally, in writing, or by any other means, including but not limited to:

- Business plans, financial data, marketing strategies, and customer lists
- Technical data, source code, design files, and processes
- Product concepts, roadmaps, and trade secrets
- Any information marked as "Confidential" or disclosed under circumstances indicating confidentiality

## 3. Obligations of Recipient

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The Recipient agrees to:

- Hold all Confidential Information in strict confidence
- Not disclose Confidential Information to any third parties without prior written consent
- Not use Confidential Information for any purpose other than evaluating the business relationship
- Protect Confidential Information with at least the same degree of care used to protect their own confidential information

## 4. Exclusions

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This Agreement does not apply to information that:

- Is or becomes publicly available through no breach of this Agreement
- Was already known to the Recipient prior to disclosure
- Is independently developed by the Recipient without use of the Confidential Information
- Is required to be disclosed by law or court order, provided prompt notice is given to the Discloser

## 5. Term

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This Agreement shall remain in effect for \_\_\_\_\_ years from the date signed. The obligations of confidentiality shall survive termination for a period of \_\_\_\_\_ years.

## 6. Return of Information

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Upon request or upon termination of discussions, the Recipient shall promptly return or destroy all documents and materials containing Confidential Information.

## 7. Remedies

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The parties acknowledge that a breach of this Agreement may cause irreparable harm for which monetary damages may be inadequate. The non-breaching party shall be entitled to seek injunctive relief.

## 8. Miscellaneous

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This Agreement constitutes the entire understanding between the parties. It is governed by the laws of \_\_\_\_\_. No amendment is valid unless in writing and signed by both parties.

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### SAOS Studio

Name: \_\_\_\_\_

Title: \_\_\_\_\_

Date: \_\_\_\_\_

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### Recipient

Name: \_\_\_\_\_

Title: \_\_\_\_\_

Date: \_\_\_\_\_

